

23STCV19739 23STCV19739

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-17

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Case Number: 23STCV19739 Hearing Date: August 17, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

ALEXIS

MOORE, et al.,

Plaintiffs,

vs.

KENNEDY

WILSON, et al.,

Defendants.

Case No.:

23STCV19739

Hearing

Date:

August 17,

[TENTATIVE]

ORDER GRANTING MOTION FOR TERMINATING
SANCTIONS

I. BACKGROUND

Plaintiffs were tenants of Defendants' apartment complexes that allegedly failed to meet the standard of habitability due, in part, to vermin and mold infestations, sanitation issues, inadequate water and gas, defective wiring, and plumbing problems. Plaintiffs sued Defendants for nine causes of action, including breach of warranty of habitability.

On April 17, 2026, Defendants filed the instant motion for terminating sanctions against Plaintiff Alexis Moore ("Moore"). No party has filed an opposition.

II. LEGAL STANDARD

Code of Civil Procedure
section 2023.030[1]

gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (§ 2023.030, subd. (d).)

A violation of a discovery order is sufficient basis for the imposition of terminating sanctions. (*Collison & Kaplan v. Hartunian* (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 795-796.)

A terminating sanction is a "drastic measure which should be employed with caution." (*Deyo*, 84 Cal.App.3d at 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (*Mileikowsky*

v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, 84 Cal.App.3d at 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.) Sanctions are not to be imposed for punishment purposes but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting from the lack of information. (See *Midwife v. Bernal* (1988) 203 Cal.App.3d 57, 64 [superseded on other grounds as stated in *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971].)

III. discussion

Defendants request the

Court impose terminating sanctions against Moore, dismissing Moore's complaint, as Moore refused to comply with the Court's March 26, 2026, order compelling Moore appear for her deposition. Pursuant to section 2023.030, subdivision (d), the Court may impose terminating sanctions for engaging in conduct that is misuse of the discovery process. Misuse of the discovery process includes failing to respond to or submit to an authorized method of discovery and disobeying a court order to provide discovery. (§ 2023.010, subd. (d) and (f).)

On May 28, 2025, Defendants

noticed Moore's deposition for July 29, 2025. (Mot., Bernardoni Decl., ¶ 5, Ex. 1.) On July 22, 2025, Moore's counsel informed Defendants they were unable to confirm Moore's availability and may need to reschedule. (Id. at ¶ 6, Ex. 2.) Moore's counsel confirmed they could not establish contact with Moore to confirm her deposition four additional times between July and October. (Ibid.) On November 12, 2025, Defendants noticed Moore's amended deposition for November 25, 2025. (Id. at ¶ 7, Ex. 3.) On November 25, 2025, after the deadline to object to the deposition notice passed, Moore's counsel advised Moore would not appear. (Id. at ¶ 8, Ex. 4.)

Following Moore's

non-appearance, Defendants moved to compel Moore's deposition. The Court granted the motion on March 26, 2026, ordering parties to meet and confer to find a mutually agreeable date. (Id. at ¶ 10, Ex. 6.) If parties were unable to agree upon a date due to Moore's unreachable status, Defendants were entitled to unilaterally set a date with at least 10 days' notice. (Ibid.)

Following an attempt to meet and confer, Defendants served a deposition notice on March 26, 2026, for April 7. (Id. at ¶ 11, Ex. 7.) Moore failed to appear for the deposition. (Id. at ¶ 12, Ex. 8.) No opposition has been filed to this motion indicating Moore's intent to appear for a deposition.

It appears Moore's counsel has been unable to contact Moore since at least last summer. No discovery concerning Moore has occurred at least since that time. The Court notes Moore's counsel recently filed a request to be relieved as counsel due to breakdown in attorney client relationship, indicating Moore has effectively abandoned this case. (See 7/21/2026 Declaration in Support of Motion to be Relieved as Counsel).

Based upon the moving papers and the Court's docket, the Court finds grounds to impose terminating sanctions. Terminating sanctions should only be imposed when a violation is willful, preceded by a history of abuse, and the evidence shows less severe sanctions would not produce compliance with discovery rules. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.) Here, the evidence indicates the violation is willful, as Moore has been on notice as to this discovery obligation since May 2025 and made no indication of intent to comply. Similarly, there is a history of abuse, as Moore failed to comply with discovery obligations despite numerous extensions, requests, and one motion concerning the discovery. (See *Mileikowsky*, in which the court found failure to answer discovery requests despite numerous extensions provided was sufficient to demonstrate a basis for terminating.) Finally, the evidence shows less severe sanctions would not produce compliance, as Moore failed to appear for her deposition despite imposition of a Court order and monetary sanctions. Moore appears to have effectively abandoned this case; the evidence shows no monetary, issue, or evidentiary sanctions will likely cure this abandonment.

Therefore, the Court grants the motion.

IV. CONCLUSION

Defendants' motion for terminating sanctions against Plaintiff Alexis Moore is therefore GRANTED. Moore's action against Defendants is dismissed.

Moving party is ordered to give notice.

DATED:

August 17, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.